

1 ENGROSSED HOUSE
2 BILL NO. 3905

By: Hefner and Ford of the
House

3 and

4 Coleman of the Senate
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7 An Act relating to domestic violence; amending 22
8 O.S. 2021, Section 60.17, which relates to the
9 Protection from Domestic Abuse Act; providing
10 alternative methods of payment for defendants deemed
11 indigent; requiring use of Global Positioning System
12 (GPS) monitoring devices by defendants charged with
13 certain crimes; directing defendants to pay costs for
14 monitoring devices; providing an exception; providing
15 for the monitoring of devices and defendants;
16 requiring payment of supervision fees; providing for
17 the removal of monitoring devices under certain
18 circumstances; allowing GPS monitoring orders to run
19 concurrently with other orders or be terminated upon
20 order by the court; allowing victims to monitor the
21 location of defendants; providing limitations on
22 monitoring capabilities; and providing an effective
23 date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 22 O.S. 2021, Section 60.17, is
20 amended to read as follows:

21 Section 60.17. A. The court shall consider the safety of any
22 and all alleged victims of domestic violence, stalking, harassment,
23 sexual assault, or forcible sodomy where the defendant is alleged to
24 have violated a protective order, committed domestic assault and

1 battery, stalked, sexually assaulted, or forcibly sodomized the
2 alleged victim or victims prior to the release of the alleged
3 defendant from custody on bond. The court, after consideration and
4 to ensure the safety of the alleged victim or victims, may issue an
5 emergency protective order pursuant to the Protection from Domestic
6 Abuse Act. The court may also issue to the alleged victim or
7 victims an order restraining the alleged defendant from any activity
8 or action from which they may be restrained under the Protection
9 from Domestic Abuse Act. The court shall not consider a "no contact
10 order as condition of bond" as a factor when determining whether the
11 petitioner is eligible for relief. The protective order shall
12 remain in effect until either a plea has been accepted, sentencing
13 has occurred in the case, the case has been dismissed, or until
14 further order of the court dismissing the protective order. In
15 conjunction with any protective order or restraining order
16 authorized by this section, the court may order the defendant to use
17 an active, real-time, twenty-four-hour Global Positioning System
18 (GPS) monitoring device for such term as the court deems
19 appropriate. Upon application of the victim, the court may
20 authorize the victim to monitor the location of the defendant. Such
21 monitoring by the victim shall be limited to the ability of the
22 victim to make computer or cellular inquiries to determine if the
23 defendant is within a specified distance of locations, excluding the
24 residence or workplace of the defendant, or to receive a computer-

1 or a cellular-generated signal if the defendant comes within a
2 specified distance of the victim. The court shall conduct an annual
3 review of the monitoring order to determine if such order to monitor
4 the location of the defendant is still necessary. Before the court
5 orders the use of a GPS device, the court shall find that the
6 defendant has a history that demonstrates an intent to commit
7 violence against the victim, including, but not limited to, prior
8 conviction for an offense under the Protection from Domestic Abuse
9 Act or any other violent offense, or any other evidence that shows
10 by a preponderance of the evidence that the defendant is likely to
11 commit violence against the victim. The court may further order the
12 defendant to pay costs and expenses related to the GPS device and
13 monitoring, unless the court finds the defendant indigent, and in
14 that event may order an alternative payment fund, county services
15 fund, or other condition in lieu of payment.

16 B. 1. In addition to monitoring by the victim pursuant to
17 subsection A of this section, the court may order any defendant
18 charged with stalking, violating a victim protective order, domestic
19 abuse by strangulation, domestic abuse with a dangerous or deadly
20 weapon, or domestic abuse after a previous adjudication for domestic
21 abuse to use an active, real-time, twenty-four-hour GPS monitoring
22 device for such term as the court deems appropriate. The cost of
23 the GPS monitoring device shall be paid by the defendant at his or
24 her own expense until the conclusion of the criminal case, unless

1 the court finds the defendant indigent, and in that event may order
2 an alternative payment fund, county services fund, or other
3 condition in lieu of payment if available.

4 2. The pretrial release or supervision programs established in
5 counties with a population over two hundred fifty thousand
6 (250,000), as determined by the latest Federal Decennial Census,
7 shall be responsible for monitoring the GPS device and the defendant
8 until the conclusion of the criminal case. Counties with a
9 population under two hundred fifty thousand (250,000), as determined
10 by the latest Federal Decennial Census, that lack an established
11 pretrial release or supervision program, shall be authorized to
12 utilize an entity that is deemed capable and that is selected by the
13 county, if funds are available, for assistance in monitoring the GPS
14 device and the defendant until the conclusion of the criminal case.
15 The defendant shall pay a supervision fee to the court clerk as
16 provided for other persons subject to supervision. At the
17 conclusion of the criminal case, the court shall order the removal
18 of the GPS monitoring device if the defendant is acquitted, is to be
19 incarcerated, the criminal case is dismissed, or as determined by
20 the court. If the defendant is placed on probation or supervision,
21 the monitoring order issued by the court may continue under the
22 sentencing order or may be terminated upon court order.

23 3. Upon application of the victim, the court may authorize the
24 victim to monitor the location of the defendant. Monitoring by the

1 victim shall be limited to the ability of the victim to make
2 computer or cellular inquiries to determine if the defendant is
3 within a specified distance of locations, excluding the residence or
4 workplace of the defendant, or to receive a computer- or cellular-
5 generated signal if the defendant comes within a specified distance
6 of the victim.

7 SECTION 2. This act shall become effective November 1, 2026.

8 Passed the House of Representatives the 26th day of March, 2026.

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11 Presiding Officer of the House
12 of Representatives

13 Passed the Senate the ____ day of _____, 2026.

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15 Presiding Officer of the Senate
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